

Warsaw, December 19, 2023

Decision

DKN.5131.42.2022

Based on Article 104 § 1 and Article 105 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2023, item 775) in connection with Article 7(1) and (2), Article 60, Article 102(1)(1) and (3) of the Personal Data Protection Act (Journal of Laws of 2019, item 1781) and Article 57(1)(a) and (h), Article 58(2)(e) and (i), Article 83(1) and (2), Article 83(4)(a) in connection with Article 33(1), (3) and (5) and Article 34(1) - (2) and (4) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 05.04.2016, p. 1 and OJ EU L 127 of 23.05.2018, p. 2 and OJ EU L 74 of 04.03.2021, p. 35), hereinafter referred to as Regulation 2016/679, after conducting an ex officio administrative proceeding regarding the violation of personal data protection regulations by the District Court in Kraków located at ul. Przy Rondzie 7, the President of the Personal Data Protection Office

1) finds that the District Court in Kraków located at ul. Przy Rondzie 7 violated the provisions:

- a) Article 33(1) and (3) of Regulation 2016/679, consisting of failing to notify the President of the Personal Data Protection Office of the personal data breach without undue delay, and no later than 72 hours after becoming aware of the breach,
- b) Article 34(1) and (2) of Regulation 2016/679, consisting of failing to inform, without undue delay, the individuals whose data were affected by the breach,

2) imposes on the District Court in Kraków for the violation of Article 33(1) and (2) and Article 34(1) and (2) of Regulation 2016/679 an administrative fine of 10,000 PLN (in words: ten thousand zlotys and 00/100),

3) orders the District Court in Kraków to notify, within 3 days from the date of receipt of this decision, (...) the individuals whose data were contained in the documents found in the damaged postal shipment (i.e., the plaintiff, the defendant, and their two children) about the breach of their personal data protection in order to provide them with the information required under Article 34(2) of Regulation 2016/679, namely:

- a) a description of the nature of the personal data breach;
- b) the name and contact details of the data protection officer or the designation of another contact point from which more information can be obtained;
- c) a description of the possible consequences of the personal data breach, taking into account the categories of individuals and the scope of data affected by the breach;
- d) a description of the measures taken or proposed by the controller to address the breach - including measures to mitigate its possible negative effects, taking into account the categories of individuals and the scope of data affected by the breach,

4) in the remaining scope, terminates the proceedings.

Justification

On July 27, 2022, a notification of a personal data breach was submitted to the Personal Data Protection Office by the Minister of Foreign Affairs located in Warsaw at (...) (hereinafter: the Minister), concerning the delivery of damaged and incomplete correspondence containing personal data to the addressee by the postal operator R. (...), sent by the Consulate General of the Republic of Poland in X. at the request of the District Court in Kraków located at ul. Przy Rondzie 7 (hereinafter: the Court or the Administrator). It was established that the Consulate General of the Republic of Poland in X. informed the District Court in Kraków by letter dated (...) July 2022, no. (...), about the delivery of the damaged and incomplete shipment to the addressee. The notification of the personal data breach made by the Minister was registered under reference number DKN.5130.8015.2022. The President of the Personal Data Protection Office, hereinafter also referred to as the President of UODO, as a result of the conducted explanatory proceedings regarding the reported personal data breach and the

administrative proceedings initiated ex officio regarding the violation of the provisions of Article 33 and Article 34(1) - (2) of Regulation 2016/679 by the District Court in Kraków, in connection with the personal data breach consisting of "the delivery of damaged and incomplete correspondence containing personal data to the addressee by the postal operator R. (...) at the request of the District Court in Kraków (...)", established the following factual state. The Minister informed the supervisory authority that the Consulate General of the Republic of Poland in X. on (...) July 2022 sent, at the request of the District Court in Kraków, correspondence via the postal operator R. (...). The addressee of the correspondence informed the aforementioned Consulate on (...) July 2022 that he had received a damaged shipment and "there may have been a breach of correspondence." Information obtained from the addressee also indicated that the correspondence had been additionally packed in protective foil, securing the damaged envelope, as well as that it did not contain all the documents subject to delivery. The Consulate General of the Republic of Poland in X. informed the Administrator about the incident by letter dated (...) July 2022.

r. (which was delivered on (...) August 2022). Its content indicates that the correspondence was delivered to the addressee on (...) July 2022 via the postal operator R. (...). Furthermore, this letter also stated that "the delivered package was received damaged and incomplete." The data controller involved in the breach is the District Court in Krakow as the sender of the package.

By letter dated (...) August 2022, the supervisory authority requested the Court to indicate whether a risk analysis of the violation of rights or freedoms of natural persons necessary for assessing whether there was a breach of data protection requiring notification of the President of UODO and the persons affected by the breach had been conducted. In a letter dated (...) August 2022, the Court indicated that "according to Article 175dd of the Act on the Organization of Common Courts (...) the authority responsible for supervising the processing of personal data processed in court proceedings in the framework of administering justice or performing tasks related to legal protection, of which the administrators are courts in the meaning of Articles 174da and 175db, is for the District Court in Krakow, the President of the Court of Appeal in Krakow (...)."

By letter dated (...) September 2022, the supervisory authority again approached the Court requesting a response to the question contained in the letter dated (...) August 2022, simultaneously informing that the President of UODO is the supervisory authority competent to investigate the subject breach. In response, in a letter dated (...) September 2022, the Court maintained its position, again referring to the content of Article 174da [no such provision in the Act], Article 175db, and Article 175dd of the Act on the Organization of Common Courts[1]. Furthermore, the Court referred to the ruling of the Court of Justice of the European Union of March 24, 2022, in case C-245/20, in which the Court noted that "the protection of the independence of the judiciary essentially assumes that judicial functions are performed in a completely independent manner; courts are not subject to any hierarchical structure and are not subordinate to anyone, nor do they receive orders or guidelines from any source, and thus are protected from any interference or external pressures that could harm the independence of the judgment of their members and influence their decisions." The CJEU concluded that the act/process of administering justice cannot and is not limited solely to the processing of personal data within specific court proceedings, but its broad scope encompasses all operations carried out within the framework of adjudicative activity. This also includes procedural codes for informing parties about the course of ongoing and initiated court proceedings. The above means that the scope of understanding "the administration of justice by courts" is broad and includes everything that can be linked to the independence of the courts. This was also emphasized by the Advocate General of the CJEU (...) in the opinion preceding the aforementioned judgment, where he pointed out that these could also be decisions that at first glance have an administrative nature, but in reality should be linked to adjudication, e.g., recording hearings, broadcasting them, or even implementing security measures (see: C-245/20 — Opinion of the Advocate General, Court of Justice of the European Union, Article 55(3) of the Regulation).

In turn, in the context of Article 175(1) of the Constitution of the Republic of Poland, it is accepted that the administration of justice consists of binding resolutions of disputes concerning rights made by a

court. "The essence of the administration of justice is the resolution of legal disputes (disputes arising from legal relations)" within specific forms of proceedings (provisions of civil and criminal procedure) (see: judgment of the Constitutional Tribunal 28/97). The national supervisory authority is therefore not entitled to control courts in the extent to which they perform adjudicative activity, which includes adjudicating not only in the main case but also in all incidental matters (cf. judgment of the Supreme Administrative Court of May 26, 2020, I OSK 1533/19). (...) Furthermore, the Court also referred to the decision of the President of UODO, ref. ZSOŚS.440.109.2018, in which the authority deemed itself incompetent to interfere with the content of documents collected in the court proceedings.

In the letter dated (...) September 2022, the Court indicated that, in its opinion, the President of UODO does not have the authority to consider the case concerning the processing of personal data contained within the framework of the administration of justice by this Court. In the Court's opinion, the adjudicative activity of the courts, constituting an expression of the administration of justice, is defined by provisions contained, among others, in the Act of November 17, 1964, the Code of Civil Procedure (hereinafter: Kpc). Actions concerning the delivery of the complaint along with attachments to the defendant in civil proceedings are detailed and comprehensively regulated in the Kpc. The Court explained that these norms create detailed legal frameworks for the administration of justice by the court in matters concerning civil law. The Court also referred to the ruling of the Court of Justice of March 24, 2022, case reference: C-245/20, indicating that "(...) operations of processing that could directly or indirectly affect the independence of the members of those courts or influence their decisions are excluded from the competence of the supervisory authority (see: judgment of the Court of Justice of March 24, 2022, C-245/20). Therefore, undoubtedly, the administration of justice includes actions related to the delivery of procedural documents to the parties, including the delivery of the complaint to the defendant. The copy of the complaint is a court document directly related to the court proceedings, for which the relevant national law provides for formalized delivery (...)." Furthermore, the Court indicated that "the above...

The issues are regulated by the provisions of the Code of Civil Procedure, namely Title VI, Chapter I, Section II "Deliveries" and Section II, Chapter 2a "Organization of Proceedings." According to Article 2051 § 1 and 2 of the Code of Civil Procedure, the presiding judge orders the delivery of the complaint to the defendant and summons them to submit a response to the complaint within a specified period of not less than two weeks. The plaintiff is notified of the order for the delivery of the complaint. (...) In the circumstances of the case, a copy of the complaint along with the attachments in the matter (...) was delivered to the defendant in accordance with the judge's order through the Consulate General of the Republic of Poland in X., by means of legal assistance based on Article 1130 et seq. of the Code of Civil Procedure and § 37 et seq. of the Regulation of the Minister of Justice of January 28, 2002, on detailed activities of courts in matters concerning international civil and criminal proceedings in international relations (Journal of Laws of 2014, item 1657). This regulation provides for delivery with the assistance of Polish consuls. Correspondence directed to diplomatic missions is signed by the judge and is affixed with, among other things, an official seal (§ 14(1) and (2) of the Regulation). In light of the above, there is no doubt that the actions of the judge in the matter (...) regarding the processed personal data, related to the delivery to the defendant of a copy of the complaint along with the attachments, occurred within the framework of the administration of justice, i.e., in a scope not falling under the jurisdiction of the President of the Personal Data Protection Office (UODO). The President of UODO cannot interfere in the internal organization of the court's work, particularly in the rules governing the circulation of procedural documentation, since this circulation occurs in connection with the court's administration of justice. By delivering a copy of the complaint along with the attachments to the defendant, the court acts within the framework of administering justice, as these actions have a measurable impact on the content of the ruling issued by the court in the proceedings. Therefore, in the circumstances of the case, it is justified to dismiss the proceedings due to the lack of subject matter jurisdiction of the President of UODO regarding the consideration of matters concerning the processing of personal data by courts in the framework of administering justice. According to Article 175 dd § 1 of the Act of July 27, 2001, on the System of Common Courts, the supervisory authority over the court as the administrator of personal data processed in court proceedings within the

framework of administering justice or performing tasks related to legal protection is not the President of UODO, but the president of the appellate court in relation to the subordinate district court. (...) The exercise by the President of UODO - as the competent authority in matters of data protection - of supervision over the processing of data in the context of adjudication by courts could constitute an impermissible interference in their adjudicative activity. The President of UODO, within the scope of the powers granted to him by law, cannot therefore interfere in the course of the proceedings or in the manner of its conduct by other authorities authorized under separate regulations, including, in particular, the courts. Thus, the President of UODO cannot also interfere in the rules of delivering to the defendant a copy of the complaint along with the attachments (which often constitute part of the evidence). (...) Therefore, the examination by the President of UODO of whether the administrator allegedly violated the provisions on the protection of personal data or failed to fulfill the obligations arising from Articles 33 and 34 § 1 and 2 of the GDPR remains moot. (...) The lack of subject matter jurisdiction of the authority - the President of UODO, who is not authorized to issue a substantive decision in this matter, determines the mootness of the administrative proceedings. Regardless of the above, it should be noted that the allegation of a possible violation by the court as the data administrator in connection with the violation of personal data protection by delivering to the addressee damaged and incomplete correspondence containing personal data is entirely unfounded and baseless. In the case of (...) the judge, acting based on the applicable legal norms, by letter dated May 11, 2022, requested the Consul General of the Republic of Poland in X. for legal assistance in delivering to the defendant M.O. a copy of the complaint along with the attachments (detailed in the covering letter). The correspondence was given the appropriate course and directed for dispatch on (...) June 2022, in accordance with the principles arising from the Regulation of the Minister of Justice of January 28, 2002, on detailed activities of courts in matters concerning international civil and criminal proceedings in international relations. The Consulate General of the Republic of Poland in X. on (...) July 2022 forwarded the shipment to the addressee by registered mail with acknowledgment of receipt. According to information available in the electronic system of the postal operator R. (...), the shipment was delivered to the addressee on (...) July 2022 (there is no annotation of any damage during transport — records in postal systems) (...). To these explanations, the court attached a report of the breach describing the incident. As a result of the aforementioned incident, there was a breach of both confidentiality and availability of data (point 4E of the notification form sent by the Minister). In the Minister's assessment, it concerned the following scope of data: first name and surname, address of residence or stay, and other information related to the court proceedings itself. In a letter dated (...) October 2022, the court clarified that the breach involved personal data of (...) individuals in the following scope: 1) of the plaintiff: her first name and surname, PESEL number, address of residence, date of birth, data contained in medical documentation, bank account number, 2) of the defendant: his first name and surname, PESEL number, address of residence, date of birth, image contained in the photograph, 3) personal data of two children: their first names and surnames, PESEL numbers, addresses of residence, dates of birth, data contained in the psychological opinion, 4) personal data of (...) witnesses: their first names and surnames, PESEL numbers, phones, addresses of residence, email addresses (in the case of (...) witnesses). Furthermore, the Court stated that the court proceedings concerned the dissolution of marriage.

The case files contain a report sent by the Court dated (...) August 2022 regarding a breach of personal data protection, which indicates, among other things, that the damaged shipment concerned a lawsuit along with attachments. The operator did not record any damages during transport; however, the recipient of the correspondence reported the aforementioned damage and its incompleteness to the Consulate.

In a letter dated January 9, 2023, the Court, responding to the authority's request dated January 4, 2023, regarding the actions that allowed the Court to determine that the correspondence was neither damaged nor incomplete, explained that "[t]here are also no grounds to state that the correspondence was sent as incomplete or was not properly secured. All procedures resulting from the provisions of the Code of Civil Procedure were followed." However, the Court did not explain how it determined the above.

The case files contain three photographs of the subject shipment taken by its recipient. The first photograph shows the correspondence wrapped in plastic with a visibly torn paper envelope inside, the second photograph shows the package/correspondence already without plastic, but with a significantly torn paper envelope allowing for the removal of all documents contained within, while the third shows how the recipient is lifting the damaged envelope to show its contents. The photographs were sent to the authority by the Minister.

After reviewing all the evidence collected in the case, the President of the Personal Data Protection Office considered the following.

The subject of these proceedings was the Administrator's breach of the provisions of Article 33 and Article 34(1) and (2) of Regulation 2016/679, resulting from the failure to notify the supervisory authority of a breach of personal data protection and the failure to inform the affected individuals regarding the delivery of damaged and incomplete correspondence containing personal data to the recipient by the postal operator, sent by the Consulate General of the Republic of Poland in M. at the request of the District Court in Krakow.

In assessing the subject event, the President of the Personal Data Protection Office examined whether the event reported by the Minister constituted a breach of personal data protection, as well as whether the President of the Personal Data Protection Office is the appropriate supervisory authority to verify compliance with the provisions of Regulation 2016/679 by the data administrator (the Court) involved in the aforementioned event, i.e., whether in this case the Court was exercising the administration of justice or legal protection.

According to Article 4(12) of Regulation 2016/679, the concept of a breach of personal data protection should be understood as a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure, or unauthorized access to personal data transmitted, stored, or otherwise processed.

Given that the event reported by the Minister involved the delivery of a damaged and incomplete shipment by the postal operator to the recipient, in the opinion of the President of the Personal Data Protection Office, there was a breach of personal data protection due to the breach of data confidentiality (the correspondence was delivered in a damaged envelope), as well as their availability (the recipient reported the incompleteness of the shipment to the Minister). The Court did not demonstrate at any stage of the proceedings that the event described by the Minister did not occur.

Furthermore, it should be noted that, in the opinion of the President of the Personal Data Protection Office, he is the supervisory authority competent to assess the aforementioned breach. The delivery of correspondence does not constitute the exercise of justice by the Court, nor legal protection, but rather a technical, administrative action of the court. Thus, there is no ground excluding the competence of the President of the Personal Data Protection Office as the supervisory authority. According to Article 55(3) of Regulation 2016/679, supervisory authorities are not competent to oversee processing operations carried out by courts in the exercise of their administration of justice.

Moreover, according to Recital 20 of Regulation 2016/679, the competence of supervisory authorities should not concern the processing of personal data by courts in the exercise of their administration of justice – in order to protect the independence of the administration of justice. There should be the possibility of entrusting oversight of such data processing operations to special bodies within the justice system of the Member State; these bodies should in particular ensure compliance with the provisions of this regulation, increase awareness in the justice system of its obligations arising from this regulation, and consider complaints related to such data processing operations. According to Article 175 dd § 1 of the Act of July 27, 2001 on the Organization of Common Courts (Journal of Laws of 2023, item 217), oversight of the processing of personal data, of which the administrators are courts, in accordance with Articles 175da and 175db, is performed within the scope of the court's activity: for district courts – by the president of the regional court; for regional courts – by the president of the appellate court; for appellate courts – by the National Judiciary Council. Given this legal framework, it

should be assumed that the supervisory authorities over common courts, in the context of the administration of justice, are those mentioned in Article 175 dd § 1 of the Act on the Organization of Common Courts.

However, in matters that do not fall within the scope of the concept of "administration of justice," the appropriate supervisory authority over common courts is the President of the Personal Data Protection Office.

Personal Data. In the assessment of the President of the Personal Data Protection Office (UODO), the concept of administering justice in the context of the personal data protection framework established by Regulation 2016/679 should be understood narrowly in this case. The Constitutional Tribunal, in its judgment of December 1, 2008, case reference: P 54/07, (Journal of Laws of 2008, item 218 no. 1400), indicated that "[a]ccording to the prevailing view in legal doctrine, the administration of justice constitutes the activity of the state consisting of adjudicating, that is, bindingly resolving disputes over rights, in which at least one of the parties is an individual or another similar entity [see L. Garlicki, Polish Constitutional Law. Outline of a Lecture, Warsaw 2006, p. 342; Z. Czeszejko-Sochacki, On the Administration of Justice in Light of the Constitution, International Standards, and Practice, "State and Law" no. 9/1999, p. 3; S. Włodyka, The System of Legal Protection Authorities, Warsaw 1968, p. 16]. It should be noted that outside the adjudicative sphere, courts also perform administrative activities, the essence of which is to ensure appropriate technical and organizational conditions for the court to carry out the tasks entrusted to it in the administration of justice and legal protection. According to Article 8 of the Act on the Organization of Common Courts, the administrative activity of courts consists of: ensuring appropriate technical-organizational and property conditions for the functioning of the court and performing the tasks referred to in Article 1 § 2 and 3 (point 1); ensuring the proper course of internal court operations, directly related to the performance of the tasks referred to in Article 1 § 2 and 3 (point 2). Thus, actions of a strictly technical nature performed by a court clerk, and subsequently by a postal operator, such as sending correspondence in accordance with the order or instruction of a judge, do not fall within the sphere of "administering justice," but rather belong to the administrative sphere of the court's activities. At the same time, it should be emphasized that the Administrator's reference to the judgment of the Court of Justice of the European Union of March 24, 2022, case reference C-245/20, is unfounded, as it does not pertain to the administrative activities of the court. This judgment relates to the provision of information about court proceedings to journalists (the case concerned the Kingdom of the Netherlands). In this ruling, the Court interpreted Article 55(3) of Regulation 2016/679, concerning the "temporary provision" by the court to journalists of procedural documents containing personal data. The Court held in this judgment that "administering justice" includes the "information policy of the court" in order to ensure media coverage of a given case. Therefore, the above judgment cannot be transferred to the subject matter of this case, as in the analyzed case there was a violation of personal data protection in connection with the delivery to the addressee by the postal operator of a damaged and incomplete shipment, i.e., an action of a technical, administrative nature. Furthermore, it should be emphasized that the President of the UODO, while dealing with this matter, does not interfere with the principles of delivering procedural documents, nor with which documents should be delivered to the addressee. The supervisory authority's interest is solely in the loss of confidentiality of data and their incompleteness as a result of the actions of the postal operator, which falls within the scope of the administrative activities of the court. Thus, the competencies of the President of the UODO do not violate judicial independence, as they do not pertain to the judge's competencies in the ongoing proceedings. Moreover, they are corrective powers, which by their nature do not have an impact on the ongoing proceedings (e.g., they do not lead to the suspension of ongoing proceedings or to ordering the removal of parts of a witness's testimony) and concern the administrative sphere of the court's activities. The identified irregularities violating the principle of "integrity and confidentiality" expressed in Article 5(1)(f) of Regulation 2016/679 correspond with the corrective powers of the President of the Personal Data Protection Office, which do not affect the violation of the court's independence, as they merely consist of ordering the administrator to adjust processing operations to the provisions of Regulation 2016/679. At the same time, the reference made by the Court to the decision of the President of the UODO with reference

number ZSOŚS.440.109.2018 is also misplaced. The decision indicated by the Court was issued in a case where an individual lodged a complaint and sought to create their situation as a party to court proceedings based on the provisions on personal data protection, rather than the appropriate procedure. The complaint concerned the inclusion in the court files maintained by the district court of a printout from the website of a law firm, containing personal data of the complainant regarding their image. According to the complainant, in the aforementioned case, this was unnecessary for evidentiary purposes, as the document to which this printout was attached was not admitted by the court as evidence in the case. The President of the UODO could not take a position in such a case (and order the removal of the image from the court files as requested by the complainant), as the admission of evidence in the case or not is solely at the discretion of the court (and constitutes an element of administering justice). Meanwhile, the judgment to which the Court referred (the judgment of the Supreme Administrative Court of May 26, 2020, case reference: I OSK 1533/19) pertains to provisions on personal data protection that are no longer in force – the Act from 1997. Furthermore, this case also concerned a situation in which the complainant challenges court actions after applying for exemption from court fees. The court summoned the complainant to demonstrate their financial situation by submitting a financial statement and to supplement the application in formal terms. In this judgment, the Supreme Administrative Court stated that neither the authority nor the administrative court can make a substantive assessment of the summons issued to the parties by the court.

****General (and thus again in the scope of administering justice).****

Taking the above into account, it should be noted that both the aforementioned decision and the aforementioned ruling of the NSA pertain to procedural actions taken by the court in the framework of administering justice, and not to administrative (technical) actions, as is the case in the matter at hand.

Regardless of the above, it should be pointed out that the President of the Court of Appeal in Krakow, as the body indicated in Article 175 dd § 1 of the Act on the Organization of Common Courts, cannot be considered a supervisory body over the Court in this matter. According to the wording of Article 175 dd of the Act on the Organization of Common Courts, judicial supervisory bodies (and thus also the President of the Court of Appeal in Krakow) are not authorized to accept reports of violations of personal data protection (Article 33 of Regulation 2016/679), nor to assess whether there is a high risk of violation of the rights or freedoms of natural persons resulting from a breach of personal data protection, which would necessitate notifying the individuals concerned about the breach (Article 34 of Regulation 2016/679).

In examining the event in question, the President of the UODO assessed it as a breach of confidentiality (issues of data security - a damaged envelope, to the contents of which unauthorized persons may have had access), as well as availability (lack of certain documents). It is of no significance here that the postal operator was at fault for damaging the shipment, as the subject of these proceedings is the lack of reporting a breach of personal data protection and the lack of notification to the individuals concerned about the breach of their personal data protection.

Furthermore, it should be emphasized that the President of the UODO, in analyzing the reported breach of personal data protection by the Minister, concerning data for which the administrator is the District Court in Krakow, in no way affects the independence of the court, as it does not influence the Court's decision or the individual decisions made by the Court in the course of the proceedings. It should also be emphasized that while the President of the UODO is not an entity controlling or supervising the application of substantive or procedural law by the courts in the framework of administering justice (which takes place in the course of the appellate process), nor does it interfere with the principles of delivering court documents (e.g., whether by registered mail, ordinary mail, or by delivery at the hearing), or what documents should be delivered to the party in the proceedings by the court, the body is authorized to control and verify the correctness of the application of personal data protection regulations, including the safeguards applied by the data administrator (including the administrator's response to the breach of data protection) and the fulfillment of obligations arising from Articles 33 and 34 of Regulation 2016/679. The manner of securing personal data by the Court is not subject to appellate review, within the framework of its adjudicative function, and does not relate to the

administration of justice by the court. Thus, it is subject to the control of the President of the UODO, just like the fulfillment of the administrator's obligations arising from the aforementioned provisions of Regulation 2016/679.

Taking the above into account, it should be noted that if there has been a breach of personal data protection in connection with the administrative part of the court's activities, it should be reported in the manner provided for in Article 33 § 1 of Regulation 2016/679 to the President of the UODO, as the competent supervisory authority. Not without significance for this matter is also the circumstance, which should be reiterated, that the competence of the judicial supervisory bodies referred to in Article 175 dd § 1 of the Act on the Organization of Common Courts does not include accepting reports of breaches of personal data protection, nor their substantive assessment. The scope of competence of these bodies has been enumeratively listed in Article 175 dd § 2 and 3 of the Act on the Organization of Common Courts (and should be treated as a closed catalog).

Article 33 of Regulation 2016/679 states that in the event of a breach of personal data protection, the data administrator shall without undue delay - where feasible, no later than 72 hours after becoming aware of the breach - report it to the supervisory authority competent under Article 55, unless it is unlikely that the breach will result in a risk to the rights or freedoms of natural persons. Any report submitted to the supervisory authority after 72 hours must include an explanation of the reasons for the delay (§ 1). The report referred to in § 1 must at least: a) describe the nature of the personal data breach, including, where possible, the categories and approximate number of individuals concerned, as well as the categories and approximate number of personal data records concerned by the breach; b) contain the name and contact details of the data protection officer or another contact point from which more information can be obtained; c) describe the possible consequences of the personal data breach; d) describe the measures taken or proposed by the administrator to address the personal data breach, including, where appropriate, measures to mitigate its possible adverse effects (§ 3).

In relation to the rights or freedoms of individuals affected by the breach, it should be noted that Article 34 § 1 of Regulation 2016/679 states that in a situation where a personal data breach is likely to result in a high risk to the rights or freedoms of natural persons, the administrator is obliged to notify the data subject of such a breach without undue delay. According to Article 34 § 2 of Regulation 2016/679, the notification should: 1) describe the nature of the personal data breach in clear and plain language; 2) contain at least the information and measures referred to in Article 33 § 3 letters b), c), and d) of the Regulation.

****2016/679, tj.:** name and surname as well as contact details of the data protection officer or designation of another contact point from which more information can be obtained; description of the possible consequences of a personal data breach; description of the measures taken or proposed by the controller to address the personal data breach, including, where appropriate, measures to minimize its potential negative effects.

Reporting personal data breaches by controllers is an effective tool contributing to a real improvement in the security of personal data processing. By reporting a breach to the supervisory authority, controllers inform the President of the UODO whether, in their opinion, there is a high risk of infringement of the rights or freedoms of the data subjects and – if such a risk exists – whether they have provided relevant information to the individuals affected by the breach. In justified cases, they may also provide information that notification is not necessary in their opinion due to the fulfillment of the conditions specified in Article 34(3)(a) – (c) of Regulation 2016/679.

The President of the UODO verifies the assessment made by the controller and may – if the controller has not notified the individuals whose data are concerned – require them to do so. Reports of personal data breaches allow the supervisory authority to respond appropriately to mitigate the effects of such breaches, as the controller is obliged to take effective actions to ensure the protection of individuals and their personal data, which on one hand allows for the monitoring of the effectiveness of existing solutions, and on the other hand, the assessment of modifications and improvements aimed at preventing irregularities similar to those covered by the breach.

In this case, there was a breach of personal data concerning (...) individuals, whereby a high risk of infringement of their rights or freedoms arose due to the scope of the breached personal data. In the case of the plaintiff, the breach included, among others, her PESEL number and health data contained in medical documentation; in the case of the defendant, his PESEL number; and in the case of two children, information about their health (contained in a psychological opinion). These data were included in the documentation sent to the party in the divorce proceedings. Furthermore, it should be reiterated that the authority received information about the personal data breach from an entity other than the Administrator.

At this point, it is important to emphasize that the President of the UODO, before initiating administrative proceedings, first inquired with the Court (twice) whether the Court had knowledge of the subject breach; however, in the response provided, the Court presented the position that the President of the UODO is not the competent authority to investigate the subject event, without answering the questions posed by the authority (thus hindering the examination of whether there was indeed a breach of personal data protection and assessing the level of risk of infringement of the rights or freedoms of the individuals whose data were included in the correspondence, or the scope of data covered by the breach). Such an approach by the Court led to the initiation of administrative proceedings by the President of the UODO. As indicated in the case materials, the Court checked the information received from the Minister about the incomplete and damaged shipment solely in the postal operator's system, concluding that the lack of annotation in this regard indicates that no incident occurred (as evidenced by Report (...) dated (...).08.2022). However, during the proceedings, the President of the UODO established that the envelope received by its addressee, along with the documents, was significantly damaged (as confirmed by photographs of the shipment received from the Minister). The damage to the envelope allowed for access to its contents, i.e., documents containing personal data in the aforementioned scope. It should also be emphasized that the President of the UODO, in a letter dated January 4, 2023, inquired with the Court about the actions taken by the Administrator that allowed him to ascertain that the correspondence was neither damaged nor incomplete, despite the information provided by the Minister. The Administrator, in a response letter dated (...) January 2023, limited himself to stating that he found no deficiencies on the part of the Court regarding the delivery of correspondence. In the Court's opinion, there are no grounds to assume that the correspondence reached the addressee incomplete or improperly secured. However, based on the photographs received from the Minister, the President of the UODO made different findings (described above), stating that there was a risk of breach of data confidentiality, as well as completeness (breach of availability). The contents of the correspondence in question (the plaintiff's medical documentation, psychological opinions regarding the children), their PESEL numbers, as well as descriptions of the marriage itself, indicate that the handling of an event that encompasses such data should be regarded as requiring special attention and diligence on the part of the data controller. Each category of data, such as the PESEL number or information about health status, signifies a high risk of infringement of the rights or freedoms of the individuals concerned. In this case, the high risk of infringement of rights or freedoms concerned (...) individuals. It should also be emphasized the ease of identifying these individuals based on the aforementioned data.

As indicated in Guidelines 9/2022[3], a breach of personal data, involving data that creates a high risk, can potentially lead to a number of negative consequences for the individuals whose data are the subject of the breach. Among the possible consequences of a breach, the European Data Protection Board...

****Data Protection Authority (EDPB) states:**** physical harm, material or non-material damages.

Examples of such damages include, among others: discrimination, identity theft or identity fraud, financial losses, violation of good name, breach of confidentiality of personal data, and significant economic or social harm. In this case, there is no doubt that due to the scope of the data covered by the infringement of personal data protection, including the PESEL identification number along with the first and last name and health information, there is a high probability of the occurrence of the aforementioned damages.

At this point, it should be noted that the PESEL number, which is an eleven-digit numerical symbol containing the date of birth, serial number, gender designation, and control number, unequivocally identifies a specific natural person, and therefore is closely linked to the private sphere of the individual and, as such, consequently, is also subject to exceptional protection under Article 87 of Regulation 2016/679 as a national identification number. Given that the PESEL number is a data of a special nature, its disclosure to unauthorized entities may pose a high risk of infringement of the rights or freedoms of natural persons (see:

<https://www.bik.pl/poradnik-bik/wyludzenie-kredytu-tak-dzialaja-oszusci> - where a case is described in which: "Only the first name, last name, and PESEL number were enough for the fraudsters to obtain several loans totaling tens of thousands of zlotys. Nothing else matched: neither the ID number nor the residential address"). It is also impossible to overlook that the analyzed infringement of personal data protection also concerned other data than the PESEL number, e.g., health information. In Guidelines 9/2022, it was emphasized that a collection of various personal data usually has a more sensitive nature than individual data.

It is worth citing one of the examples mentioned in the EDPB Guidelines 01/2021 regarding examples of reporting personal data breaches, hereinafter referred to as Guidelines 01/2021 (case no. 14, p. 31), relating to the situation of "accidentally mailing highly confidential personal data." In the case described in the aforementioned guidelines, there was a disclosure of the social security number, which is equivalent to the PESEL number used in Poland. In this case, the EDPB had no doubts that the disclosed data regarding: first name and last name, email address, postal address, and social security number indicated a high risk of infringement of the rights or freedoms of natural persons ("the involvement of their [the affected persons'] social security number, as well as other more basic personal data, additionally increases the risk, which can be described as high"). The EDPB recognizes the importance of national identification numbers (in this case, the PESEL number), while emphasizing that such a breach of personal data protection, thus encompassing data in the form of: first name and last name, email address, postal address, and social security number, requires the implementation of actions, i.e.: notifying the supervisory authority and informing the affected individuals of the breach. The EDPB has no doubt that an individually assigned number that unequivocally identifies a natural person should be subject to special protection, and its disclosure to unauthorized entities may be associated with a high risk of infringement of the rights or freedoms of natural persons.

The fact that data unequivocally identifying a natural person may pose a high risk of infringement of rights or freedoms is also indicated by the EDPB in other examples provided in Guidelines 01/2021. In points 65 and 66 of Guidelines 01/2021, it was stated: "(...) The breached data allow for the unequivocal identification of the individuals to whom the data pertains and contain other information about them (including gender, date, and place of birth); moreover, they may be used by an attacker to guess customer passwords or to conduct a spear phishing campaign targeting bank customers. For these reasons, it was concluded that the data breach is likely to result in a high risk of infringement of the rights and freedoms of all individuals whose data is concerned. Consequently, there may be material damages (e.g., financial losses) and non-material damages (e.g., identity theft or fraud)."

Similar doubts (that the disclosure of the PESEL number along with other personal data may pose a high risk of infringement of the rights or freedoms of natural persons) were also held by the Provincial Administrative Court in Warsaw, which in its judgment of September 22, 2021, case file II SA/Wa 791/21, stated that "[t]here is no doubt that the examples of damages cited in the guidelines may occur in the case of individuals whose personal data – in some cases together with the PESEL identification number or the series and number of the ID card – were recorded on the shared recordings. The possibility of identifying individuals whose data was subject to the breach based on the disclosed data is significant for such an assessment." Furthermore, the Court in the aforementioned ruling indicated that "The data was disclosed to unauthorized persons, which means that there was a security breach leading to the unauthorized disclosure of personal data, and the scope of this data, which in some cases also included the PESEL identification number or the series and number of the ID card, determines that there was a high risk of infringement of the rights or freedoms of natural persons."

Considering the above issues, it is also necessary to refer to the position of the Provincial Administrative Court in Warsaw expressed in the judgment of July 1, 2022, issued in case file II SA/Wa 4143/21. In the justification of this judgment, the Court stated that: "[t]he President of the UODO is correct in stating that the loss of confidentiality of the PESEL number in conjunction with the data... personal data, such as: first name and surname, registered address, bank account numbers, and the identification number assigned to Bank customers - CIF number, is associated with a high risk of infringement of the rights or freedoms of natural persons. In the event of a breach of such data as first name, surname, and PESEL number, identity theft or identity fraud may occur, resulting in negative consequences for the individuals concerned. Therefore, the Bank should have promptly notified the individuals whose data is affected about the breach of personal data protection, in accordance with Article 34(1) of the GDPR, to enable them to take necessary preventive actions. It should also be pointed out the judgment of August 31, 2022, case reference II SA/Wa 2993/21, in which the Provincial Administrative Court in Warsaw emphasized that "(...) the authority rightly concluded that there was a high risk of infringement of the rights and freedoms of individuals affected by the breach due to the possibility of easy identification of the individuals whose data was breached based on the disclosed data. These data include first name and surname, correspondence address, phone number, and PESEL number of individuals holding Polish citizenship. In this situation, the administrator was obliged to notify without undue delay the individuals whose data is concerned about the breach." Similarly, the Provincial Administrative Court in Warsaw expressed itself in judgments of November 15, 2022, case reference II SA/Wa 546/22, and June 21, 2023, case reference II SA/Wa 150/23.

The latest report from infoDOK[4] (which is prepared as part of the social Information Campaign of the RESTRICTED DOCUMENTS System, organized by the Polish Bank Association and some banks, under the patronage of the Ministry of Internal Affairs and Administration and in cooperation with, among others, the Police and the Consumers' Federation) indicates that in the second quarter of 2023, there were 2,116 attempts to defraud loans and credits, amounting to PLN 50.3 million. Over the last twelve months, the total amount of thwarted attempts to defraud loans amounts to PLN 191.6 million. Furthermore, it should be noted that in the second quarter of 2022, there were 1,806 attempts to defraud loans and credits, amounting to PLN 54.4 million[5]. This indicates a significant increase in attempts to defraud loans and credits during the presented period. Additionally, as evidenced by the case law, judgments in cases of loan fraud are not uncommon and have been issued by Polish courts in similar cases for a long time - for example, one can refer to the judgment of the District Court in Łęczyca dated July 27, 2016 (case reference I C 566/15), in which fraudsters taking a loan using someone else's data used a PESEL number, a fictitious address, and an incorrect (invalid) ID number. During the court proceedings, the defendant demonstrated that they did not incur the aforementioned obligation, despite someone using their PESEL number. However, this required conducting evidentiary proceedings. Such situations are much more common and require affected individuals (de facto victims of crime) to take actions (through legal or amicable means) to prove that they did not carry out specific actions resulting in, for example, incurring obligations or stealing someone else's financial resources (in cases of crimes related to, for example, online fraud).

In summary, the breach of personal data protection creates a high risk of infringement of the rights or freedoms of natural persons not only because it involves the PESEL numbers of the aforementioned individuals but also their special categories of data - information about the plaintiff's health status and information contained in the psychological assessment of the two children. This information, linked with, among others, first names and surnames and the context of the divorce case, may lead to a loss of control over the data and not only threats related to the disclosure of the PESEL number but may also cause discrimination in the environment of these individuals or even violate their personal rights. All these circumstances were not taken into account by the Administrator when analyzing the incident, even when compelled by calls from the President of the UODO.

It should also be noted that the Administrator's fulfillment of their obligation under Article 33(1) and Article 34(1) of Regulation 2016/679 cannot be conditioned on the materialization of the risk arising from the infringement of the rights or freedoms of natural persons whose data is concerned by the

breach of personal data protection. As stated by the Provincial Administrative Court in Warsaw in the judgment of September 22, 2021, issued in case reference II SA/Wa 791/21: “[i]t should be emphasized that the possible consequences of the event do not have to materialize. The content of Article 33(1) of Regulation 2016/679 indicates that the mere occurrence of a breach of personal data protection, which is associated with a risk of infringement of the rights or freedoms of natural persons, implies the obligation to report the breach to the relevant supervisory authority, unless it is unlikely that the breach will result in a risk of infringement of the rights or freedoms of natural persons” (the Court similarly ruled in the previously mentioned judgment of July 1, 2022, issued in case reference II SA/Wa 4143/21 and in the judgments of August 31, 2022, case reference II SA/Wa 2993/21, November 15, 2022, case reference II SA/Wa 546/22, and April 26, 2023, case reference II SA/Wa 1272/22).

In analyzing the above, one should also not forget about the fundamental principles. When applying the provisions of Regulation 2016/679, it should be borne in mind that the purpose of this regulation (expressed in Article 1(2)) is to protect the fundamental rights and freedoms of natural persons, in particular their right to the protection of personal data, and that the protection of natural persons in relation to the processing of personal data is one of the fundamental rights (first sentence of Recital 1 of the preamble). In case of any doubts, for example, regarding the fulfillment of obligations by administrators - including

****In the event of a breach of personal data protection, the first consideration should be these values.****

It is particularly important to emphasize that when assessing the risk of infringement of the rights or freedoms of natural persons, which is a prerequisite for reporting a personal data breach and notifying the affected individual, both the probability factor and the severity of potential negative consequences must be taken into account. A high level of either of these factors affects the overall assessment, which determines the fulfillment of the obligations specified in Article 33(1) and Article 34(1) of Regulation 2016/679. Given that, due to the scope of the disclosed personal data, there is a possibility of significant negative consequences materializing for the individuals concerned (as demonstrated above), the potential impact on the rights or freedoms of the natural person should be considered high. At the same time, the likelihood of high risk arising from the breach in question is not small and has not been eliminated. Therefore, it must be stated that there is a high risk of infringement of the rights or freedoms of the individuals concerned due to the breach, which consequently determines the obligation to report the personal data breach to the supervisory authority and to notify the individuals affected by the breach of personal data protection.

In Guidelines 9/2022, the EDPB indicates the factors to be considered when assessing risk, referring to recitals 75 and 76 of Regulation 2016/679, which suggest that the controller should take into account both the likelihood of occurrence and the severity of the threat to the rights or freedoms of the individual whose data is concerned. In the case of a personal data breach, the controller should focus on the risk of impact on the individual arising from the breach. Thus, when assessing the risk to the individual resulting from a personal data breach, the controller should consider the specific circumstances of the breach, including the severity of the potential impact and the likelihood of its occurrence. In this regard, when assessing risk, the EDPB recommends considering criteria such as: the type of breach, the nature, sensitivity, and amount of personal data, as well as the ease of identification, as these may affect the level of risk to individuals. The risk of infringement of the rights or freedoms of a natural person, according to Guidelines 9/2022, will be greater when the consequences of the breach are more serious, as well as when the likelihood of their occurrence increases. The guidelines indicate that in case of any doubts, the controller should report the breach, even if such caution might seem excessive.

****In summary, it must be stated that in this case, there is a high risk of infringement of the rights or freedoms of the individuals affected by the personal data breach, which in turn results in the Court's obligation to report the personal data breach to the supervisory authority, in accordance with Article 33(1) of Regulation 2016/679, which must include the information specified in Article 33(3) of Regulation 2016/679, as well as notifying the individuals concerned about the breach, in accordance with Article 34(1) of Regulation 2016/679, which must include the information specified in Article 34(2)**

of Regulation 2016/679.**

Referring to the obligation of the Controller specified in Article 34(2) of Regulation 2016/679, the President of the UODO stated that the Controller (considering the nature of the breach and the categories of data that were breached) should indicate to the affected individual the most likely negative consequences of the breach of their personal data. Certainly, in the case of a breach of such data as name, surname, and PESEL identification number, it should primarily point to the possible theft or falsification of identity through obtaining loans from non-bank institutions or fraudulently obtaining insurance or funds from insurance, which may lead to negative consequences related to attempting to attribute responsibility for such fraud to the individual whose data has been breached. The description of possible consequences should reflect the risk of infringement of the rights or freedoms of that individual, so as to enable them to take necessary preventive actions. In contrast, in the case of other data involved in the personal data breach, which causes a high risk of infringement of the rights or freedoms of natural persons (special categories of data within the meaning of Article 9 of Regulation 2016/679), the Controller should indicate discrimination, violation of personal rights, defamation, or other forms of persecution of these individuals, due to the disclosed health data.

In a situation where, as a result of a personal data breach, there is a high risk of infringement of the rights or freedoms of natural persons, the controller is obliged to implement all appropriate technical and organizational measures to immediately identify the personal data breach and promptly inform the supervisory authority, as well as the individuals concerned. The controller should fulfill this obligation as soon as possible.

In recital 85 of the preamble to Regulation 2016/679, it is explained: “[i]n the absence of an appropriate and timely response, a personal data breach may result in physical harm, material or non-material damage to individuals, such as loss of control over their personal data or restriction of rights, discrimination, the data subject is exposed, and not the postal operator or courier company.”

In summary, the Court emphasized that the responsibility for protecting the interests of the data subject lies with the sender of the correspondence, who is aware of its contents, including whether the documents contain personal data and to what extent. The postal operator or courier company may perform the duties of the administrator only in relation to the personal data of the senders and recipients of the shipments.

Thus, the administrator, by deciding not to notify the supervisory authority and the data subjects about the breach, effectively deprived those individuals of timely, reliable information regarding the personal data breach and the opportunity to mitigate potential damages.

It should also be noted that the Data Protection Officer of the Court incorrectly assessed the level of risk to the rights or freedoms of individuals in connection with the subject data breach. He indicated that since the documents were prepared in Polish and sent to the United Kingdom, this does not create a high risk in this regard. In the opinion of the President of the UODO, the fact that the documents containing personal data were prepared in Polish and sent to a country where the primary language is English does not lower the level of that risk.

Given the existence of tools that allow for the rapid translation of entire documents, as well as the fact that a significant portion of the population in the United Kingdom speaks Polish, it cannot be assumed that this circumstance allows for a reduction in the level of risk.

The President of the UODO acknowledges, of course, that the postal operator was responsible for the delivery of the aforementioned documentation; however, damage to it or the loss of part of the documents by the postal operator creates specific obligations for the administrator (the Court) arising from the provisions of Regulation 2016/679, the failure to comply with which results in liability.

The Court, as the sender of this correspondence, possesses knowledge of its contents, including whether the documents in the shipment contain personal data and to what extent. As indicated by the Provincial Administrative Court in Warsaw in its judgment of July 1, 2022, case file II SA/Wa 4143/21,

“[i]n the event of irregularities in the delivery of a shipment, the obligation to protect the interests of the data subject from the perspective of the risk of violation of the rights or freedoms of the person to whom the data pertains lies with the sender of the shipment, who, knowing the contents of the lost correspondence, is able to assess the threats arising for the person whose data is involved. On the other hand, the postal operator and the courier company may perform the duties of the administrator, in the sense of the provisions of the GDPR, but only in relation to the personal data of the senders and recipients of the shipments.”

Consequently, the WSA in Warsaw emphasized that “It is therefore the Bank [here: the District Court in Krakow as the sender of the shipment] that can assess what risk is posed to the rights or freedoms of the person.”

****Loss of Shipment and Data Breach Notification Obligations****

The physical loss of the shipment results in the inability to fulfill the obligation to report a personal data breach to the supervisory authority and to notify the affected individuals. The courier company does not possess such knowledge.

Consequently, it must be stated that the Administrator did not report the personal data breach to the supervisory authority in fulfillment of the obligation under Article 33(1) of Regulation 2016/679 and did not notify without undue delay the individuals whose data is concerned about the breach of their data protection, in accordance with Article 34(1) of Regulation 2016/679, which constitutes a violation of these provisions by the Administrator. Therefore, the President of the UODO deemed it appropriate to issue a decision to the data administrator, exercising his corrective powers, mandating the notification of the individuals whose data is concerned about the breach of their personal data, in order to provide them with the information specified in Article 34(2) of Regulation 2016/679.

According to Article 34(4) of Regulation 2016/679, if the administrator has not yet notified the individual whose data is concerned about the personal data breach, the supervisory authority—taking into account the likelihood that this personal data breach will result in a high risk—may require the administrator to do so or may determine that one of the conditions referred to in paragraph 3 has been met. Furthermore, from the content of Article 58(2)(e) of Regulation 2016/679, it follows that every supervisory authority has the corrective power to order the administrator to notify the individual whose data is concerned about the data breach.

Pursuant to Article 58(2)(i) of Regulation 2016/679, every supervisory authority has the power to impose, in addition to or instead of other corrective measures provided for in Article 58(2) of Regulation 2016/679, an administrative fine under Article 83 of Regulation 2016/679, depending on the circumstances of the specific case. The President of the UODO states that in the case at hand, there were grounds justifying the imposition of an administrative fine on the Administrator based on Article 83(4)(a) of Regulation 2016/679, which states, among other things, that a violation of the obligations of the administrator referred to in Articles 33 and 34 of Regulation 2016/679 is subject to an administrative fine of up to 10,000,000 EURO, and in the case of an enterprise—up to 2% of its total annual worldwide turnover from the previous financial year, with the higher amount applicable. Moreover, Article 102(1) of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781) states that the President of the UODO may impose, by way of a decision, administrative fines of up to 100,000 PLN on: entities of the public finance sector referred to in Article 9(1-12 and 14) of the Act of August 27, 2009, on Public Finances, research institutes, or the National Bank of Poland. From paragraph 3 of this article, it follows that the administrative fines referred to, among others, in paragraph 1, are imposed by the President of the Office based on and under the conditions specified in Article 83 of Regulation 2016/679.

In accordance with the provisions of Article 83(2) of Regulation 2016/679, administrative fines are imposed, depending on the circumstances of each individual case, in addition to or instead of the measures referred to in Article 58(2)(a) - (h) and (j) of Regulation 2016/679. In deciding to impose an administrative fine on the Court, the President of the UODO—pursuant to the provisions of Article 83(2)(a) - (k) of Regulation 2016/679—considered the following circumstances of the case, which

necessitate the application of this type of sanction in the present case and which adversely affect the amount of the imposed administrative fine:

1) The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing, the number of affected individuals whose data is concerned, and the extent of the damage suffered by them [Article 83(2)(a) of Regulation 2016/679]. The infringement established in this case is of significant weight and serious nature, as the reporting of personal data breaches by data administrators constitutes an effective tool contributing to a real improvement in the security of personal data processing. Above all, based on the information provided by administrators in the reports of personal data breaches, the supervisory authority can assess whether the administrator has properly analyzed the impact of the breach on the rights or freedoms of the individuals whose data is subject to the breach, and consequently, whether there is a high risk of infringement of the rights or freedoms of natural persons and whether there is a need to notify those individuals about the breach of their data. Properly fulfilled obligations by administrators specified in Articles 33(1) and 34(1) of Regulation 2016/679 also allow for the limitation of negative consequences of personal data breaches and the elimination or at least reduction of the risk of such breaches occurring in the future, as administrators are obliged to take actions that ensure proper protection of personal data through the application of appropriate security measures and the control of their effectiveness. Furthermore, the notification of a breach to the supervisory authority allows for an appropriate response from the authority, which would enable the mitigation of the consequences of the breach. The lack of notification to the individuals whose data is concerned about the breach of their personal data may lead to material or non-material damages, and the likelihood of their occurrence is high. The President of the UODO considers the long duration of the breach as an aggravating circumstance. From the moment the Administrator became aware of the personal data breach (August (...) 2022 – i.e., the day the letter was delivered...

General Consulate of the Republic of Poland in X. (from (...) July 2022)

up to the date of issuance of this decision, (...) months have passed, during which the risk of violation of the rights or freedoms of (...) individuals, in relation to whom such a risk occurred at a high level, could have materialized, and to which these individuals could not have countered due to the Administrator's failure to notify them of the violation. It is also significant that the violation of personal data protection in question was related to the delivery of court correspondence to the party in divorce proceedings and concerned a total of (...) individuals (in the case of (...) individuals, there was a high risk of violation of their rights or freedoms, which determines the obligation to notify them of the violation of personal data protection). The nature of the information contained in the aforementioned correspondence indicates the family situation of the individuals affected by the violation, and thus the personal nature of this information. This, in turn, affects the level of risk of violation of the rights or freedoms of the individuals affected by the violation.

2) The intentional nature of the violation [Article 83(2)(b) of Regulation 2016/679]. According to the Guidelines of the Article 29 Working Party on the application and determination of administrative fines for the purposes of Regulation No. 2016/679 WP253 (adopted on October 3, 2017), intent "includes both knowledge and deliberate action, in connection with the characteristics of the prohibited act." The Administrator made a conscious decision not to notify the President of the Personal Data Protection Office (UODO) as well as the individuals whose data is concerned about the violation of personal data protection. Special protection of personal data, including primarily the PESEL number and health information, is required from public trust institutions, which undoubtedly includes the Administrator. Being aware of this, the Administrator nevertheless decided to refrain from reporting the violation to the President of UODO and notifying the individuals whose data is concerned, despite the fact that the President of UODO initially informed the Administrator of the obligations incumbent upon the administrator in connection with the violation of data protection. Ultimately, the mere initiation by the President of UODO of this proceeding regarding the obligation to report the violation of personal data protection to the supervisory authority and to notify the individuals whose data is concerned about the violation should have raised at least doubts for the Administrator regarding the correctness of the position he adopted.

3) Categories of personal data affected by the violation [Article 83(2)(g) of Regulation 2016/679]. The violation of personal data protection in question encompassed personal data of (...) individuals (violation of Article 33(1) of Regulation 2016/679), of which in the case of (...) individuals, there was a high risk of violation of their rights or freedoms (violation of Article 34(1) of Regulation 2016/679). This violation included the following data: 1) the plaintiff: her name and surname, PESEL number, residential address, date of birth, data contained in medical documentation, bank account number; 2) the defendant: his name and surname, PESEL number, residential address, date of birth, image contained in a photograph; 3) personal data of two children: their names and surnames, PESEL numbers, residential addresses, dates of birth, data contained in a psychological opinion. Furthermore, the Court stated that the court proceedings concerned the dissolution of marriage. This scope indicates the emergence of a high level of risk of violation of the rights or freedoms of these individuals, particularly due to the PESEL number and health information, which constitute data subject to special protection under Article 9 of Regulation 2016/679.

In determining the amount of the administrative fine, the President of UODO found no grounds to consider mitigating circumstances affecting the final amount of the fine. All the criteria listed in Article 83(2)(a)-(j) of Regulation 2016/679, in the assessment of the supervisory authority, constitute either aggravating factors or merely neutral ones. Also, applying the criterion mentioned in Article 83(2)(k) of Regulation 2016/679 (requiring consideration of any other aggravating or mitigating factors applicable to the circumstances of the case), no mitigating circumstances were found, only neutral ones (as noted below in point 9).

Other circumstances mentioned in Article 83(2) of Regulation 2016/679, after assessing their impact on the violation established in this case, were deemed by the President of UODO to be neutral in his assessment, meaning they had neither an aggravating nor a mitigating effect on the amount of the imposed administrative fine.

1. Actions taken by the administrator to minimize the damage suffered by the individuals whose data is concerned [Article 83(2)(c) of Regulation 2016/679]. Based on the evidence collected in the case, no actions were found to have been taken by the Administrator.

2. The degree of responsibility of the administrator, taking into account the technical and organizational measures implemented by him under Articles 25 and 32 [Article 83(2)(d) of Regulation 2016/679]. The violation assessed in this proceeding (failure to report the violation of personal data protection to the President of UODO and failure to notify the individuals whose data is concerned about the violation of personal data protection) is not related to the technical and organizational measures applied by the administrator.

3. Relevant previous violations of the provisions of Regulation 2016/679 by the administrator [Article 83(2)(e) of Regulation 2016/679]. The President of UODO found no previous violations of personal data protection regulations committed by the Administrator, and therefore there are no grounds to treat this.

circumstances as aggravating. And since such a state (compliance with data protection regulations) is a natural state resulting from the legal obligations imposed on the Administrator, it cannot have a mitigating effect on the assessment of the violation made by the President of the Personal Data Protection Office (UODO).

4. Degree of cooperation with the supervisory authority in order to rectify the violation and mitigate its potential negative effects [Article 83(2)(f) of Regulation 2016/679]. During the explanatory proceedings and the initiated administrative proceedings, the Administrator provided responses to the supervisory authority's requests aimed at clarifying all circumstances related to the violation of personal data protection.

5. The manner in which the supervisory authority became aware of the violation [Article 83(2)(h) of Regulation 2016/679]. The President of UODO was informed of the occurrence of the personal data protection violation, i.e., the delivery of a damaged and incomplete shipment by the postal operator to

the addressee, by the Minister, and not by the Administrator. The lack of notification to the supervisory authority of the personal data protection violation and the notification of the individuals concerned about the violation of personal data protection (thus violating the provisions of Article 33(1) and Article 34(1) of Regulation 2016/679) is, however, the sole subject of these proceedings, and in the circumstances of the considered factual state, the supervisory authority has determined that it will not treat this premise as an aggravating circumstance.

6. Compliance with previously applied measures in the same case, as referred to in Article 58(2) of Regulation 2016/679 [Article 83(2)(i) of Regulation 2016/679]. Prior to issuing this decision, the President of UODO did not apply any of the measures mentioned in Article 58(2) of Regulation 2016/679 against the Administrator in the case under consideration, which means that the Administrator had no obligation to take any actions related to their application, and such actions, assessed by the President of UODO, could have had an aggravating or mitigating effect on the assessment of the established violation.

7. Application of approved codes of conduct under Article 40 of Regulation 2016/679 or approved certification mechanisms under Article 42 of Regulation 2016/679 [Article 83(2)(j) of Regulation 2016/679]. The Administrator does not apply the instruments referred to in Articles 40 and 42 of Regulation 2016/679. However, their adoption, implementation, and application are not mandatory for administrators and processors, as stipulated by the provisions of Regulation 2016/679, which means that the circumstance of their non-application cannot be considered detrimental to the Administrator in this case. Conversely, the circumstance of adopting and applying such instruments as measures guaranteeing a higher than standard level of protection for processed personal data could be taken into account in favor of the Administrator.

8. Financial benefits obtained directly or indirectly in connection with the violation or losses avoided [Article 83(2)(k) of Regulation 2016/679]. The President of UODO found no evidence that the Administrator obtained any financial benefits or avoided such losses in connection with the violation. Therefore, there are no grounds for treating this circumstance as aggravating for the Administrator. The establishment of measurable financial benefits resulting from the violation of the provisions of Regulation 2016/679 should be assessed very negatively. On the other hand, the lack of such benefits for the Administrator, as a natural state independent of the violation and its effects, is a circumstance that, by its nature, cannot be mitigating for the Administrator. This is confirmed by the very wording of Article 83(2)(k) of Regulation 2016/679, which requires the supervisory authority to pay due attention to the benefits "obtained" – those that occurred on the part of the entity committing the violation.

9. Other aggravating or mitigating factors applicable to the circumstances of the case [Article 83(2)(k) of Regulation 2016/679]. The President of UODO, comprehensively considering the case, did not note any circumstances other than those described above that could influence the assessment of the violation and the amount of the imposed administrative fine. In the opinion of the President of UODO, the imposed administrative fine fulfills, in the established circumstances of this case, the functions referred to in Article 83(1) of Regulation 2016/679, i.e., it is effective, proportional, and deterrent in this individual case.

It should be emphasized that the fine will be effective if its imposition leads to the Administrator fulfilling their obligations regarding personal data protection in the future, particularly in terms of reporting personal data protection violations to the President of UODO and notifying individuals affected by the violation of personal data protection.

In the opinion of the President of the Personal Data Protection Office, the administrative fine will serve a repressive function, as it will be a response to the Administrator's violation of the provisions of Regulation 2016/679. It will also serve a preventive function; in the opinion of the President of UODO, it will indicate both to the Administrator and to other data controllers the reprehensibility of neglecting the obligations of controllers related to the occurrence of personal data protection violations, which aim to prevent their negative and often severe consequences for the individuals affected by the violation, as well as to eliminate those consequences or at least mitigate them.

In light of the above, it should be noted that the administrative fine in the amount of 10,000 zlotys (in words: ten thousand zlotys) fulfills, in the established circumstances of this case.

****Conditions referred to in Article 83(1) of Regulation 2016/679, due to the seriousness of the established violation in the context of the fundamental purpose of Regulation 2016/679 - the protection of fundamental rights and freedoms of natural persons, in particular the right to personal data protection. At the same time, the amount of the administrative monetary penalty imposed by this decision on the administrator being a unit of the public finance sector (public authorities, including government administration bodies, state control bodies and law enforcement, as well as courts and tribunals - indicated in Article 9(1) of the Act of August 27, 2009 on public finances), falls within the limit of 100,000 zlotys specified in Article 102(1) of the Act of May 10, 2018 on the protection of personal data (Journal of Laws of 2019, item 1781).****

****According to Article 33(5) of Regulation 2016/679, the administrator documents all personal data breaches, including the circumstances of the personal data breach, its consequences, and the remedial actions taken. This documentation must allow the supervisory authority to verify compliance with this article.****

****Considering that the Administrator submitted a document during the proceedings marked as: "Report (...)", it should be acknowledged that the Administrator maintains documentation related to personal data breaches, including documentation concerning the specific personal data breach in question. Although the assessment of the event contained therein, in the opinion of the President of the UODO, is incorrect (as demonstrated above), this cannot constitute an allegation of a violation of the aforementioned provision of Regulation 2016/679. This means that the proceedings in this regard are moot and subject to dismissal.****

****In connection with the above, pursuant to the provisions of Article 105 § 1 of the Act of June 14, 1960 - Code of Administrative Procedure (Journal of Laws of 2023, item 775), hereinafter referred to as the Kpa, when the proceedings have become moot for any reason, the administrative authority issues a decision to dismiss the proceedings. The subject of the proceedings is related to the application by the public authority of the provisions of substantive administrative law. In doctrine, it is indicated that: "the mootness of administrative proceedings, as referred to in Article 105 § 1 of the Kpa, means that one of the elements of the substantive legal relationship is missing, and therefore it is not possible to issue a decision resolving the matter by deciding on its substance. The ground for dismissing the proceedings may exist even before the proceedings are initiated, which will only be revealed in the ongoing proceedings, and it may also arise during the course of the proceedings, thus in a case already pending before the administrative authority" (B. Adamiak, J. Borkowski, Code of Administrative Procedure. Commentary, C.H. Beck, Warsaw 2006, p. 489).****

****The determination by the public authority of the existence of the ground referred to in Article 105 § 1 of the Kpa obliges it, as emphasized in doctrine and jurisprudence, to dismiss the proceedings, as there are no grounds for resolving the matter on its merits in the situation where this ground exists, and further conducting the proceedings in such a case would indicate its defectiveness, which has a significant impact on the outcome of the case.****

****In this factual and legal state, the President of the Office for Personal Data Protection has decided as stated in the operative part.****

****[1] Act on the Organization of Common Courts – Act of July 27, 2001 on the Organization of Common Courts (Journal of Laws of 2020, item 2072, as amended).****

****[2] Act of 1997 – Act of August 29, 1997 on the Protection of Personal Data (Journal of Laws of 2016, item 922, as amended).****

****[3] EDPB Guidelines 9/2022 on the reporting of personal data breaches in accordance with the GDPR;****

****[4] <https://www.zbp.pl/getmedia/45bb9af8-95a4-4cc2-9767-05c73e5b1eb3/Raport-InfoDOK-II-kwarta-I-2023>;****

****[5] <https://www.zbp.pl/getmedia/b5257020-2baa-4507-828c-a1b78c769c6d/infodok-2022-04-06-wydanie-50-sklad-220725-gk05>;**

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